

		that he was informed by the current tenant at 510 W Central Ave Unit B, Brea, CA 92821 that Bonavita was the previous tenant. The current tenant is Wolverine Fire. (See, Exh. 1, p. 2.) Plaintiff does not proffer any evidence however to establish that Bonavita’s registered process server resigned, there is no current replacement, or identify the address designated for personal delivery of the process. While these contentions are stated as arguments in the application, argument of counsel contained in a points and authorities are not evidence. (<i>Muskan Food & Fuel, Inc. v. City of Fresno</i> (2021) 69 Cal.App.5th 372, 389-390.) As such, Plaintiff has not made the necessary showing for service of summons upon the Secretary of State pursuant to Corporations Code section 17701.16. The application is therefore DENIED without prejudice. Plaintiff to give notice.
5	Carnations Home, Inc. vs. The Hills Senior Living	<u>Motion to Set Aside Default</u> (Status Conference re Default Judgment) 1. Motion to Set Aside Default The hearing on this motion was continued from 6/26/26. At the 6/26/26 hearing on the motion, the court posted a tentative ruling granting the motion. Plaintiffs requested an opportunity to provide further briefing on an issue that Defendants explicitly raised in reply (i.e., for relief under Section 473(d) of the Code of Civil Procedure). The motion was originally noticed under subsection “b” of Section 473. At Plaintiff’s request, the court continued the hearing on the motion to allow Plaintiffs to file a supplemental opposition and Defendants to file a supplemental response to the opposition. The parties thereafter filed timely supplemental briefing, which this court has considered.